Supreme Court, U.S.
FILED
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CLERK

No. 97-475

IN THE

Supreme Court of the United States

OCTOBER TERM, 1997

EL AL ISRAEL AIRLINES, LTD.,

Petitioner,

—v.—

TSUI YUAN TSENG,

Respondent.

ON WRIT OF CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE SECOND CIRCUIT

JOINT APPENDIX

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PETITION FOR CERTIORARI FILED SEPTEMBER 11, 1997
CERTIORARI GRANTED MAY 18, 1998

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CHRONOLOGICAL LIST OF RELEVANT DOCKET ENTRIES

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

Case No. 94-CV-3385

TSUI YUAN TSENG,

Plaintiff,

—v.—

EL AL ISRAEL AIRLINES, LTD.,

Defendant.

DOCUMENT DATE	DOCKET NUMBER	DESCRIPTION
05/09/94	1	NOTICE OF REMOVAL from N.Y. Sup. State Court County of New York; FILING FEE $120 RECEIPT # 215291 (sc) [Entry date 05/10/94]
05/09/94	3	ANSWER to Complaint by El Al Israel Airlin. (Attorney S. Forsyth); Firm of: Condon & Forsyth by attorney Stephen J. Fearson for defendant El Al Israel Airlin. (sc) [Entry date 05/10/94]
09/14/94	5	STIPULATION and ORDER, that for the purposes of this action only, the individuals who conducted preboarding

DOCUMENT DATE	DOCKET NUMBER	DESCRIPTION
		security and searches at John F. Kennedy International Airport 22 May 1993 are to be deemed employees or agents of defendant El Al Israel Airlines, Ltd. (signed by Judge Louis L. Stanton). (jr) [Entry date 09/15/94]
01/05/95	7	NOTICE OF MOTION by Tsui Yuan Tseng to compel deft. to produce the security manual containing the procedures employed by it in respect to pltff. upon the continued deposition of deft., to respond to pltff's questions propounded at the deposition of deft. by Gideon Meiry on 9/13/94, for appropriate sanctions be imposed in accordance with rule 37. Affdvt. of Robert H. Silk attached to motion, Return date 1/10/95 (ls) [Entry date 01/09/95]
01/05/94	8	AFFIDAVIT in opposition to Gideon by El Al Israel Airlin. Re: [7-1] motion to compel deft. to produce the security manual containing the procedures employed by it in respect to pltff. upon the continued deposition of deft., to respond to pltff's questions propounded at the deposition of deft. by Gideon Meiry on 9/13/94, [7-2] motion for appropriate sanctions be imposed in accordance with rule 37, and IN SUPPORT OF EL AL's motion for a protective order (ls) [Entry date 01/09/95]
01/05/95	9	NOTICE OF CROSS MOTION by El Al Israel Airlin. for an order protecting deft. El Al Israel Airlines, Ltd. from its highly sensitive, confidential and privi-

DOCUMENT DATE	DOCKET NUMBER	DESCRIPTION
		leged security manuals and procedures, for costs and attorney fees. Return date 1/10/95 (ls) [Entry date 01/09/95] [Edit date 01/09/95]
01/05/95	10	Reply affidavit of Dalia Carmel by El Al Israel Airlin. in support of [9-1] motion for an order protecting deft. El Al Israel Airlines, Ltd. from disclosing its highly sensitive, confidential and privileged security manuals and procedures, [9-2] motion for costs and attorney fees (ls) [Entry date 01/09/95]
01/05/95	11	AFFIDAVIT in opposition of Diane Westwood Wilson by El Al Israel Airlin. Re: [7-1] motion to compel deft. to produce the security manual containing the procedures employed by it in respect to pltff. upon the continued deposition of deft., to respond to pltff's questions propounded at the deposition of deft. by Gideon Meiry on 9/13/94, [7-2] motion for appropriate sanctions be imposed in accordance with rule 37, [10-1] support response, and IN SUPPORT OF [9-1] motion for an order protecting deft. El Al Israel Airlines, Ltd. from its highly sensitive, confidential and privileged security manuals and procedures (ls) [Entry date 01/09/95]
01/05/95	12	REPLY MEMORANDUM by Tsui Yuan Tseng (pl) [Entry date 01/10/95]
01/05/95	13	MEMORANDUM by Tsui Yuan Tseng in support of [7-1] motion to compel deft. to produce the security manual containing the procedures employed by it in

DOCUMENT DATE	DOCKET NUMBER	DESCRIPTION
		respect to pltff. upon the continued deposition of deft., to respond to pltff's questions propounded at the deposition of deft. by Gideon Meiry on 9/13/94, opposition to [9-1] for an order protecting deft. El Al Israel Airlines, Ltd. from its highly sensitive, confidential and privileged security manuals and procedures (pl) [Entry date 01/10/95]
01/05/95	14	MEMORANDUM of Points and Authorities of by El Al Israel Airlin. in opposition to [7-1] motion to compel deft. to produce the security manual containing the procedures employed by it in respect to pltff. upon the continued deposition of deft., to respond pltff's questions propounded at the deposition of deft. by Gideon Meiry on 9/13/94, support of [9-1] for an order protecting El Al Israel Airlines, Ltd. from its highly sensitive, confidential and privileged security manuals and procedures (pl) [Entry date 01/10/95]
01/05/95	15	REPLY MEMORANDUM of Points and Authorities of by El Al Israel Airlin. re: in further support [9-1] for an order protecting deft. El Al Israel Airlines, Ltd. from its highly sensitive, confidential and privileged security manuals and procedures (pl) [Entry date 01/10/95]
02/08/95	16	AFFIDAVIT in further support of D. Carmel by El Al Israel Airlin. Re: [9-1] for an order protecting deft. El Al Israel Airlines, Ltd. from its highly sensitive,

DOCUMENT DATE	DOCKET NUMBER	DESCRIPTION
		confidential and privileged security manuals and procedures (cd)
09/19/95	--	Memo endorsed on motion; DENYING [7-1] motion to compel deft. to produce its security manual or testimony concerning its contents, or both. El Al's motion for an order protecting is from disclosure of its security manuals on procedures is granted . . . A conference will be held in room 21C of the courthouse, 500 Pearl Street, New York, New York, on Friday, 9/29/95 at 5:00 p.m., to set times for the completion of any further discovery and the filing of a pretrial order. (signed by Judge Louis L. Stanton) (ae) [Entry date 09/25/95]
09/25/95	--	Memo endorsed on motion; granting [9-1] for an order protecting deft. El Al Israel Airlines, Ltd. from its highly sensitive, confidential and privileged security manuals and procedures. Plaintiff's motion to compel defendant El Al to produce its security manual or testimony concerning its contents, or both, is denied . . . (signed by Judge Louis L. Stanton) (ae) [Entry date 09/29/95]
01/12/96	18	PLTFF'S PROPOSED FINDINGS OF FACT AND CONCLUSIONS OF LAW (kk) [Entry date 01/17/96]
01/12/96	19	PLTFF'S TRIAL BRIEF . . . (kk) [Entry date 01/17/96]
01/12/96	21	DEFENDANT'S PROPOSED FINDINGS OF FACT AND CONCLUSIONS OF LAW (ae) [Entry date 01/18/96]

DOCUMENT DATE	DOCKET NUMBER	DESCRIPTION
01/12/96	22	TRIAL BRIEF of El Al Israel Airlin. (ae) [Entry date 01/18/96]
03/14/96	24	ORDER, Because the Warsaw Convention precludes recovery for emotional injury or for the physcial manifestations of such injury, plaintiffs' claims seeking such recovery are dismissed. For her claims of damage to and loss of items in her baggage, plaintiff is entitled to damages in the amount of $1034.90, plus prejudgment interest according to law. The Clerk is directed to enter judgment accordingly (signed by Judge Louis L. Stanton); Copies mailed (To J.C. on 3/15/96) (pl) [Entry date 03/15/96]
03/15/96	25	DEFENDANT'S BRIEF establishing that there is no right of recovery for alleged emotional distress absent bodily injury under the warsaw convention. (ae) [Entry date 03/18/96]
03/20/96	28	JUDGMENT # 96,0591, ... ORDERED, ADJUDGED AND DECREED: that the pltff have judgment in the sum of $1,034.90 with pre-judgment interest from 5/22/93 through 3/20/96 at 9% equaling $263.60; all totaling the judgment sum of $1,298.50 as against the deft. EOD: 3/20/96 (SO ORDERED CLERK, JAMES M. PARKISON); Mailed copies and notice of right to appeal (kg)
04/17/96	29	NOTICE OF APPEAL by Tsui Yuan Tseng; from [28-1] judgment order. Copies of notice of appeal mailed to Attorney(s) of Record: Condon & Forsyth (em)

DOCUMENT DATE	DOCKET NUMBER	DESCRIPTION
04/30/96	34	NOTICE OF CROSS-APPEAL by El Al Israel Airlin. from judgment entered on March 20, 1996. Copies sent to Silk, Bunks & Suckle, P.C., fees pd. rec # 261025 (as) [Entry date 05/10/96]
05/09/96	31	Transcript of record of proceedings filed for dates of 3/7/96 before Judge Stanton. (rag)
05/09/96	32	Transcript of record of proceedings filed for dates of 3/11/96 before Judge Stanton. (rag)
05/09/96	33	Transcript of record of proceedings filed for dates of 3/8/96 before Judge Stanton. (mb)
05/20/96	35	STIPULATION and ORDER, IT IS HEREBY STIPULATED AND AGREED by and between the undersigned counsel for the above parties that the Docket Sheet herein be amended and corrected so as to include the Consent Pretrial Order which is executed by counsel of the above parties and on file herewith and that the Docket, so corrected, be transmitted to the Clerk of the United States Court of Appeals, Second Circuit, by the Clerk of the United States District Court SDNY AND IT IS FURTHER AGREED that an order effecting the foregoing may be granted and entered without further notice. Stanton.) (djc)

UNITED STATES COURT OF APPEALS
FOR THE SECOND CIRCUIT

Docket Nos. 96-7447L & 96-7619XAP

TSUI YUAN TSENG,

Plaintiff-Appellant-Cross-Appellee,

—v.—

EL AL ISRAEL AIRLINES, LTD.,

Defendant-Appellee-Cross-Appellant.

DOCUMENT DATE	DESCRIPTION
05/24/96	Appellant Tsui Yuan Tseng brief FILED with proof of service (cv73) [96-7447]
05/24/96	Appellant Tsui Yuan Tseng joint appendix filed w/pfs. Number of volumes: 1. (cv73) [96-7447]
07/31/96	Appellee-Cross-Appellant El Al Israel Airline in 96-7447 brief filed with proof of service. (cv73) [96-7447]
08/13/96	Appellant-Cross-Appellee Tsui Yuan Tseng in 96-7447 reply brief filed with proof of service. Satisfy appellant's reply brief due. (cv72) [96-7447]

DOCUMENT DATE	DESCRIPTION
11/20/96	Case heard before Newman, Chief Judge, Cardamone, Altimari, C.JJ. (TAPE: # 85) (unj) [96-7447]
02/06/97	Appellee-Cross-Appellant El Al Israel Airline in 96-7447 28(J) letter received. (cc: panel) (cv72) [96-7447]
02/07/97	Appellant Tseng response letter to 28j letter of Appellee received. (cc: panel) (cv72) [96-7447]
06/13/97	Judgment of the district court is AFFIRMED IN PART. REVERSED IN PART and REMANDED by published signed opinion filed. (RJC) [96-7447] (cv72) [96-7447]
07/08/97	Judgment MANDATE ISSUED. (cv72) [96-7447]
09/08/97	Letter sent to district court recalling mandate. (cv72) [96-7447]

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

TSUI YUAN TSENG,

Plaintiff,

—against—

EL AL ISRAEL AIRLINES, LTD.,

Defendant.

COMPLAINT

Plaintiff, complaining of the Defendant, by SILK, BUNKS & SUCKLE, P.C , her attorneys, alleges:

FIRST CAUSE OF ACTION:

1. Defendant is a corporation regularly engaged in the transaction of business in the State of New York.

2. At all times herein, defendant owned, operated, controlled, and managed an airline.

3. At all times herein, defendant carried passengers for hire on its airline between New York and Israel.

4. Prior hereto, plaintiff purchased a ticket for transportation on defendant's airline from New York to Israel.

5. The flight upon which plaintiff booked passage was scheduled to depart from JFK International Airport, in the Borough of Queens, City of New York, on May 22nd, 1993.

6. At all times herein, defendant maintained terminal facilities for departing passengers on its aircraft at JFK.

7. On May 22, 1993, plaintiff appeared at defendant's facilities at JFK International Airport to prepare for departure on the plane on which she had booked her flight.

8. Defendant then and there negligently, recklessly and forcibly took plaintiff into custody, partially stripped, examined bodily, assaulted, and falsely imprisoned and physically and mentally abused her, and subjected her to grossly humiliating treatment, all without cause, justification, or right, and caused her to sustain serious traumatic injury of a permanent nature.

9. In consequence of the foregoing, plaintiff was damaged in the sum of Five Million ($5,000,000) Dollars.

SECOND CAUSE OF ACTION:

10. In the course of the foregoing episode, defendant caused plaintiff's luggage and personal belongings to be seized, her belongings and clothing ripped through, disheveled, stained, and damaged, and valuable property to be seized, appropriated and converted, all to plaintiff's damage in the sum of Seventy Five Thousand ($75,000) Dollars.

WHEREFORE, plaintiff demands judgment against defendant in the sum of Two Million ($5,000,000) Dollars on the First Cause of Action and Seventy Five Thousand ($75,000) Dollars on the Second Cause of Action with interest thereon, with costs and disbursements.

SILK, BUNKS & SUCKLE, P.C.,
Attorneys for Plaintiff,
401 Broadway - Suite 1700
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(212) 966-1545

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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94 civ. 3385(LLS)

TSUI YUAN TSENG,

Plaintiff,

—against—

EL AL ISRAEL AIRLINES, LTD.,

Defendant.

ANSWER OF DEFENDANT
EL AL ISRAEL AIRLINES, LTD.

Defendant EL AL ISRAEL AIRLINES, LTD., by and through its attorneys Condon & Forsyth, for its Answer to the Complaint herein, alleges upon information and belief as follows:

AS TO THE FIRST ALLEGED CAUSE OF ACTION

1. Denies the allegations in paragraphs 1, 2 and 3 of the Complaint except admits that defendant EL AL, a foreign corporation duly organized and existing under the laws of Israel, does business in the State of New York and is engaged in the international transportation of passengers and cargo for hire.

2. Denies knowledge or information sufficient to form a belief as to the truth of the allegations in paragraphs 4 and 5 of the Complaint.

3. Denies the allegations in paragraph 6 in the Complaint.

4. Denies knowledge or information sufficient to form a belief as to the truth of the allegations in paragraph 7 of the Complaint.

5. Denies the allegations in paragraphs 8 and 9 of the Complaint.

AS TO THE SECOND ALLEGED CAUSE OF ACTION

6. Denies the allegations in paragraph 10 of the Complaint.

FIRST AFFIRMATIVE DEFENSE

7. The Complaint fails to state a claim upon which relief can be granted.

SECOND AFFIRMATIVE DEFENSE

8. Alleges that whatever injury or damage may have been sustained by plaintiff was caused or contributed to by said plaintiff's own negligence or culpable conduct and that defendant EL AL is, therefore, not liable to plaintiff or, alternatively that its liability to plaintiff is partial only and should be reduced in accordance with applicable law.

THIRD AFFIRMATIVE DEFENSE

9. Alleges that whatever injury or damage may have been sustained by plaintiff was caused by the direct and proximate negligence of other parties, their agents or employees or by others unknown at this time over whom defendant EL AL had no control at any time relevant hereto, and in the event EL AL is found liable to plaintiff, which liability is expressly denied, defendant EL AL will be entitled to indemnification, contribution or apportionment of liability pursuant to applicable law.

FOURTH AFFIRMATIVE DEFENSE

10. Any alleged detention of plaintiff and/or any alleged use of physical force was lawful, reasonable, privileged, authorized and justified.

FIFTH AFFIRMATIVE DEFENSE

11. Alleges that pursuant to its Tariffs on file with the Department of Transportation of the United States and pursuant to its conditions of carriage set forth in the relevant contract of transportation, defendant EL AL is not liable to plaintiff or, in the alternative, defendant EL AL's liability is limited.

SIXTH AFFIRMATIVE DEFENSE

12. Plaintiff's claims against EL AL are barred by the Act of State Doctrine.

WHEREFORE, defendant EL AL ISRAEL AIRLINES, LTD. demands judgment dismissing the Complaint in its entirety or, alternatively, judgment limiting its liability pursuant to the foregoing, and all other relief which to this Court may seem just and proper in the circumstances.

CONDON & FORSYTH

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EL AL ISRAEL AIRLINES, LTD.

To: SILK, BUNKS & SUCKLE, P.C.
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UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

Civ. 94 Civ. 3385 (LLS)
Filed September 14, 1994

TSUI YUAN TSENG,

Plaintiff,

—against—

EL AL ISRAEL AIRLINES, LTD.,

Defendant.

STIPULATION

IT IS HEREBY STIPULATED AND AGREED by and between the undersigned counsel for the above parties that, for the purposes of this action only, the individuals who conducted preboarding security and searches at John F. Kennedy International Airport 22 May 1993 are to be deemed employees or agents of defendant EL AL ISRAEL AIRLINES, LTD.

SILK, BUNKS & SUCKLE, P.C.

By ROBERT H. SILK
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Attorneys for Defendant
EL AL ISRAEL AIRLINES, LTD.

Dated: September 14, 1994

SO ORDERED:

LOUIS L. STANTON
Louis L. Stanton, U.S.D.J

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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94 Civ. 3385 (LLS)

TSUI YUAN TSENG,

Plaintiff,

—against—

EL AL ISRAEL AIRLINES, LTD.,

Defendant.

CONSENT PRETRIAL ORDER

The parties, having exchanged proposed findings and counter-findings of fact in accordance with the pre-trial procedures of United States District Judge Louis L. Stanton, hereby submit the following:

A. AGREED FINDINGS OF FACT

1. Defendant is a foreign corporation organized under the laws of Israel and engaged in business in the State of New York.

2. At all times herein, defendant was engaged in the international air transport of passengers and cargo on an airline known as EL AL ISRAEL AIRLINES on flights from New York City to Tel Aviv.

3. Prior to May 22, 1993, plaintiff purchased a ticket for air transportation on defendant's airline from New York to Israel.

4. The flight upon which plaintiff booked passage was Flight LY-008 which was scheduled to depart from JFK International Airport, in the Borough of Queens, City of New York, on May 22, 1993.

5. At all items herein, defendant maintained and operated terminal facilities for departing passengers on its aircraft at JFK International Airport.

6. On May 22, 1993, plaintiff appeared at defendant's facilities at JFK International Airport to prepare for departure on the plane on which she had booked her flight.

7. Gideon Meiry was EL AL regional security manager for the United States in May 1993.

8. Gideon Meiry's employment duties consisted of training, hiring and managing the security staff and being responsible for implementation of security procedures in all EL AL's activities.

9. Gideon Meiry was in charge of security procedures for defendant for passengers prior to their boarding EL AL planes at JFK International Airport on May 22, 1993, and was actually engaged at JFK in the performance of such duty on that day.

10. Gideon Meiry does not have a log or record listing the employees on duty at that time.

11. Plaintiff is a woman of oriental appearance.

12. Gideon Meiry does not recall plaintiff at this time.

13. Plaintiff's name is contained on records kept by defendant marked as defendant's exhibits 1, 2, 3, 4 and 5 to the deposition of Gideon Meiry held September 13, 1994.

14. Defendant has no records of to whom on the security crew plaintiff spoke.

15. Plaintiff had presented to defendant her American passport.

16. For the purposes of this action only, the individuals who conducted pre-boarding security and searches at JFK International Airport on May 22, 1993 are deemed employees or agents of defendant EL AL.

17. Gideon Meiry does not recall any of the interview.

18. Gideon Meiry does not recall what the illogical story was.

19. Gideon Meiry does not know who conducted the search of plaintiff, and has no records which shed light on the identity of such person.

B. PLAINTIFF'S PROPOSED FINDINGS OF FACT

1. Defendant then and there forcibly took plaintiff into custody, partially stripped, examined bodily, assaulted, and falsely imprisoned and physically and mentally abused her, and subjected her to grossly humiliating treatment, all without cause, justification, or right, and caused her to sustain serious traumatic injury of a permanent nature. (Testimony of plaintiff and Drs. Anthony J. Sarro and James M. McGowan).

2. In the course of the foregoing episode, defendant caused plaintiff's luggage and personal belongings to be seized, her belongings and clothing ripped through, disheveled, stained, and damaged, and valuable property to be seized, appropriated and converted, all to her damage. (Testimony of plaintiff, supplementing facts agreed to above; Chen-Nang Tai, 306 W. 93rd St., Apt. 46, New York City, concerning his gift to plaintiff of Rolex watch and value thereof prior to the flight).

3. Gideon Meiry identified the exhibits 1, 2, 3, 4 and 5 marked at his deposition as containing plaintiff's name on a list of high risk passengers on that particular flight.

4. Gideon Meiry testified that it was a routine procedure to put everybody's name on a high risk passenger list but the only name on the list was plaintiff's.

5. Gideon Meiry instructed one of his employees, a Mr. Magid, to place plaintiff's name on the list. Mr. Meiry claims that he considered plaintiff a high risk passenger on the basis of what he says was an illogical story, but does not remember the story which he says was illogical.

6. Gideon Meiry says that plaintiff did not speak to him but to one of his employees and he does not know to which one.

7. At all relevant times, Ms. Tseng had been issued by defendant and possessed a boarding pass for EL AL Flight LY-008 and was on the defendant's passenger list for that flight.

8. Plaintiff's name was listed not on any documents that Mr. Meiry had in his possession from any source as a person who would be a risky person for EL AL to take on board a flight.

9. Defendant conducted a pre-boarding search of plaintiff's person and property at the EL AL Terminal at JFK International Airport on May 22, 1993.

10. Gideon Meiry assumes he was present for at least part of a pre-boarding security interview of plaintiff.

11. Gideon Meiry denies being present during the search of plaintiff's person.

12. Gideon Meiry recalls plaintiff being escorted to a special room for a search to be conducted.

13. Defendant's stated basis for declaring plaintiff a security risk in the first place was an allegedly illogical story which she allegedly told.

14. Plaintiff was eventually cleared and allowed by defendant to board Flight LY-008 though the search did not clear up plaintiff's alleged illogical story.

15. No one in Gideon Meiry's division is in the position to clarify what the story he deemed illogical was besides Mr. Meiry, and he cannot do it.

16. Plaintiff's luggage was searched in a different room from where her body was searched.

C. DEFENDANT'S PROPOSED COUNTER-FINDINGS OF ULTIMATE FACT

1. In accordance with defendant's pre-boarding procedures, plaintiff was questioned about her destination and travel plans. EL AL's records show that, based upon plaintiff's responses, she matched the characteristics of a "high risk" passenger. Affidavit of Gideon Meiry, EL AL Regional Security Manager, sworn to December 7, 1994, submitted in support of EL AL's motion for a protective order ("Meiry Aff.") ¶ 6; Meiry Dep. Ex. "1."

2. Plaintiff voluntarily followed defendant's employee to a room within the boarding area to be questioned. Defendant's employees did not at any time use force to question or search plaintiff. Tseng Dep. at 23.

3. Plaintiff's baggage was searched and plaintiff, while fully clothed, also was searched. Meiry Aff. ¶ 6; Tseng Dep. at 57-58.

4. Plaintiff voiced no objection to the search. Meiry Aff. ¶ 7; Tseng Dep. at 24, 30.

5. Defendant did not at any time request plaintiff to remove her underclothing, her jeans, her t-shirt or her socks. Tseng Dep. at 58.

6. The search of plaintiff and her baggage was conducted in accordance with EL AL's security manuals and procedures which are approved in accordance with U.S. Federal Regulations. Meiry Aff. ¶ 8.

D. DEFENDANT'S PROPOSED FINDINGS ON AFFIRMATIVE DEFENSES AND OTHER SUBJECT MATTER

1. Plaintiff's passenger ticket provided for "international transportation" within the meaning of Article 1(2) of the Warsaw Convention. The places of departure and destination, the United States, is a High Contracting Party to the Warsaw Convention and there was an agreed stopping place in another country, Israel.

2. It is standard EL AL practice to admit only ticketed passengers into the EL AL Terminal.

3. Plaintiff was not free to leave the area where she was interviewed unless she declined to board EL AL flight 008.

4. The questioning of a would-be passenger for security purposes is a usual event in the course of international air transportation.

5. All passengers intending to travel by air transportation are subject to security procedures.

6. EL AL is one of the only airlines which subjects baggage and cargo to a pressurization test prior to being loaded onto the aircraft.

7. The pre-boarding questioning and search of plaintif was a justified security measure.

8. Plaintiff was searched because she fit a "high risk" passenger profile, i.e., she fit the profile of a passenger who may present a danger to the flight security of EL AL.

9. Once plaintiff and her belongings were searched, EL AL security concluded that plaintiff was not an immediate threat to the safety of EL AL flight 008, and she was permitted to board the aircraft.

10. Plaintiff was never physically harmed in any manner by defendant. Rather, plaintiff is seeking damages essentially for

the emotional distress which she allegedly underwent as a result of the pre-boarding search.

11. Plaintiff allegedly discovered that items were missing from her carry-on baggage upon arrival in Tel Aviv on May 23, 1993.

12. EL AL Tariff Rule No. 55 (E)(1) requires that complaints for damage to baggage be made in writing within seven days from the date of receipt of such baggage.

13. EL AL Tariff Rule No. 55 (E)(1) requires that complaints for loss of baggage be made in writing within twenty-one days from the date the baggage should have been returned to the passenger.

14. Plaintiff did not make a written or oral complaint to defendant about the alleged items missing from her baggage while she was in Tel Aviv.

15. Plaintiff returned to the United States on June 26, 1993.

16. Plaintiff provided defendant with her first written notice of claim on July 1, 1993, thirty-nine days after plaintiff's arrival in Tel Aviv.

17. Plaintiff has not made any insurance claims on the items allegedly missing from her baggage.

18. EL AL Tariff Rule No. 115 (Q) sets the maximum weight permitted for checked baggage on defendant's flights at no more than seventy pounds (32 kilograms).

19. EL AL Tariff Rule No. 55 (C)(7) limits defendant's liability, if any, to a maximum of $20.00 per kilogram ($9.07 per pound) for checked baggage and $400.00 for unchecked baggage.

20. Plaintiff alleges that certain items from her checked baggage were missing and other items were damaged.

21. The actions taken by defendant were neither outrageous nor extreme.

22. Defendant never put plaintiff in a position which unreasonably endangered her physical safety nor where she could fear for her own physical safety.

23. Defendant did not in any way place plaintiff in fear of an imminent harmful or offensive contact.

24. Defendant did not convert the items allegedly missing from plaintiff's checked baggage.

E. EXPERT WITNESSES

Plaintiff intends to call upon the following physicians as expert witnesses to testify:

Dr. Anthony J. Sarro
Dr. James M. McGowan

Defendant intends to call upon Mr. Joseph Sullivan as an expert witness to testify with respect to airport security procedures on behalf of EL AL.

F. PREMARKED JOINT TRIAL EXHIBITS

The parties hereby stipulate and agree that the following exhibits may be received, with the Court's approval, in evidence at trial as premarked joint trial exhibits:

1. Stipulation by defendant, or faxed copy of same, to defendant's employment of individuals who conducted pre-boarding security search at JFK International Airport on May 22, 1993.

2. Plaintiff's passenger ticket on EL AL flight No. LY-008 from New York, JFK to Tel Aviv.

3. Affidavit of Gideon Meiry, EL AL Regional Security Manager, sworn to December 7, 1994, submitted in support of EL AL's motion for a protective order.

4. Letter from plaintiff to EL AL, attention I. Mittleman dated July 1, 1993.

5. Meiry Dep. Exhibits "1", "2", "3", "4" and "5."

6. Copy of plaintiff's boarding pass issued to plaintiff on May 22, 1993, plaintiff's passenger receipt for ticket no. 114 151 0552 429, EL AL baggage tag for flight EL AL 008 and two (2) Alitalia baggage tags for flight AZ 610.

7. Copy of EL AL receipt for camera.

G. PREMARKED DISPUTED EXHIBITS

The parties have not been able to agree on the admissibility of the following premarked exhibits which they intend to offer at trial:

PLAINTIFF'S EXHIBIT 1. Copy of passenger receipt for Soro for flight EL AL 0845 Tel Aviv/Rome.

PLAINTIFF'S EXHIBIT 2. Copy of letter from The Port Authority of New York and New Jersey to plaintiff dated March 12, 1994.

DEFENDANT'S EXHIBIT A. Certified copy of EL AL International Passenger Rules and Fares Tariff ("EL AL Tariff Rule"), NTA (A) No. 324, ¶C.A.B. NO. 530, Rule Nos. 55 (C) (7), (8) Limitation of Liability, and (E)(1), Time Limitations on Claims and Actions.

DEFENDANT'S EXHIBIT B. Certified copy of EL AL Tariff Rule No. 115(Q), Free Baggage Allowance and Excess Baggage Charges.

DEFENDANT'S EXHIBIT C. Airplane and Airport Operator Security Rules, 46 Fed. Reg. 3782, 3783 (1981).

DEFENDANT'S EXHIBIT D. 14 C.F.R. § 108 (1995).

DEFENDANT'S EXHIBIT E. 14 C.F.R. § 129.25 (1995).

DEFENDANT'S EXHIBIT F. 14 C.F.R. § 107 (1995).

H. TYPE OF TRIAL AND ESTIMATED LENGTH

1. This will be a non-jury trial.

2. Plaintiff estimates that it will take two days to present her case.

3. Defendant estimates that it will take one day to present its case.

SILK, BURNS & SUCKLE, P.C.

BY ROBERT H. SILK
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CONDON & FORSYTH

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(212)757-6870
Attorneys for Defendant

SO ORDERED,

Dated: New York, New York
January ___, 1996

_____
U. S. D. J.

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

94 Civ. 3385 (LLS)

TSUI YUAN TSENG,

Plaintiff,

—against—

EL AL ISRAEL AIRLINES, LTD.,

Defendant.

MEMORANDUM AND ORDER

Plaintiff Tsui Yuan Tseng claims defendant El Al Israel Airlines, Ltd. ("El Al"), which searched her person and bags as she was boarding a flight, subjected her to assault, false imprisonment, physical and mental abuse and humiliation, and the loss of and damage to her property.

The case was tried to the court on March 7, 8, and 11, 1996. From my observation of the witnesses and exhibits, I find the preponderance of the credible evidence establishes the following facts. All Agreed Findings in the Consent Pretrial Order are found as facts, and are supplemented by the findings below.

FACTS

On May 22, 1993, Ms. Tseng went to El Al's terminal at John F. Kennedy International Airport in Queens, New York to take a flight to Tel Aviv. While awaiting check-in she was queried about her reasons for the trip, asked to wait, and then

taken to a small room with a few chairs and a table, where she was searched.

At the instruction of a uniformed man and woman, she put her luggage (a suitcase, a carry-on bag and her purse) on the table and unlocked it. The man and woman took out the contents of her luggage and put her things into small baskets, which they took into another room into which she was not allowed to follow.

The woman then told Ms. Tseng to take off her jacket, sweater, shoes, and belt, and to loosen and lower her blue jeans to just below her hip. The woman proceeded to search her, first by feeling her body by hand outside her clothes from head to toe, and then with an electronic security wand.

After an hour or so, they stuffed her things messily back into her luggage. She was then escorted to her plane. They told her to leave her suitcase there, and that it would be put on the plane.

During the flight, she felt sick, upset, and nervous, and had a headache. She glanced a few times in her carry-on bag, but its contents were so disorganized that she could not find anything.

At her hotel in Tel Aviv, she opened her suitcase, carry-on bag, and purse. She sorted through the messy contents and discovered that many of her clothes were stained and damaged, and that several items were missing, including a Rolex watch, a jade ring, some of her clothes, and a thousand dollars in cash. She called El Al's office in Tel Aviv, and was told that they could not do anything about the losses in Israel and to wait until she was back in the United States and then report them.

She returned to the United States on or about June 20, 1994. Around the end of June, she went to see her doctor for treatment of headaches, upset stomach, ringing in her ears, nervousness and sleeplessness, all of which had bothered her since she was searched. She also brought to El Al, in person, a letter dated July 1, 1994, complaining about her search and detention and listing the items that were missing and damaged.

El Al claims she was searched because her reasons for her trip appeared "illogical," but it is unable (for lack of memory and records) to specify how. It urges, and I accept, that the actual method of search of her person conformed to their usual practice.

DISCUSSION

A. BODILY INJURY

The parties dispute whether the Warsaw Convention applies to plaintiff's claims that she suffered injury as a result of her detention and search by El Al. In particular, they dispute whether her claimed injuries resulted from an "accident" within the meaning of Article 17 of the Convention, which states:

> The carrier shall be liable for damage sustained in the event of the death or wounding of a passenger or any other bodily injury suffered by a passenger, if the accident which caused the damage so sustained took place on board the aircraft or in the course of any of the operations of embarking or disembarking.

Air France v. Saks, 470 U.S. 392, 105 S. Ct. 1338 (1985), dealt with the definition of "accident" in Article 17. The Supreme Court concluded that "liability under Article 17 of the Warsaw Convention arises only if a passenger's injury is caused by an unexpected or unusual event or happening that is external to the passenger," and stated further that "This definition should be flexibly applied after assessment of all the circumstances surrounding a passenger's injuries." 470 U.S. at 405, 105 S. Ct. at 1345. In *Shen v. Japan Airlines*, 1994 WL 167989 (S.D.N.Y.), *aff'd*, 43 F.3d 1459 (2d Cir. 1994), this court applied the Warsaw Convention to the detention, search, and confinement of passengers by Japan Airlines. *Id.* at *2.

Plaintiff argues that El Al's actions were not an "accident" but wilful misconduct, and therefore not covered by the Convention.

The record in this case does not support the proposition that the search of the plaintiff was wilful misconduct. The actual techniques for carrying out the search were those prescribed by El Al's procedures, and are reasonable in light of the need for discovering small dangerous objects, if the prospective passenger appears to pose a threat.

There is no evidence that the plaintiff actually posed such a threat, and there is no evidence explaining why she was selected to be searched. Although El Al's records state that her story was illogical, no reason is given why El Al personnel thought so.

It may have been a mistake. There may have appeared a basis for El Al's suspicions, although they ultimately proved groundless. However, there is no evidence and no basis for inferring that it was anything more than a mistake. Even if such a mistake can be characterized as misconduct, there is no basis for inferring that it was wilful. Accordingly, I find that it was not such wilful misconduct as might take the case outside the Convention's limitations of liability under Article 25.[1]

Occasional personal searches are recognized incidents of international air travel. The evidence shows that they occur two to four times a day at El Al alone, which averages over 1,000 times per year for that single airline.

Using the flexible application prescribed by the Supreme Court, such a routine search, applied erroneously to plaintiff in the course of embarking on the aircraft, is fairly accurately

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[1] The Convention, in Article 25(1), provides:

> The carrier shall not be entitled to avail himself of the provisions of this convention which exclude or limit his liability, if the damage is caused by his wilful misconduct or by such default on his part as, in accordance with the law of the court to which the case is submitted, is considered to be equivalent to wilful misconduct.

characterized as an accident; that is to say, an unexpected or unusual event or happening external to the passenger.

Accordingly, the Warsaw Convention applies.

Under the Convention, the case is governed by *Eastern Airlines, Inc. v. Floyd*, 499 U.S. 530, 111 S. Ct. 1489 (1991), in which the Supreme Court squarely considered and squarely disallowed any recovery for psychic or psychosomatic injury unaccompanied by bodily injury. 499 U.S. at 552, 111 S. Ct. at 1502.

Here, the plaintiff sustained no bodily injury. Her body was not injured by the woman who searched her by feeling the surface of her body outside her clothing with her hands, and by using an electronic security wand to detect metal objects. On the contrary, all of her personal injuries are attributable to her shock and outrage at the way she was treated. Although her injuries may have had physical manifestations, those are the types of psychic or psychosomatic injuries barred by *Floyd* and not the "bodily injury" for which compensation is available under Article 17 of the Convention.

The Convention precludes recovery on such claims under state law. Article 24 of the Convention provides:

> (1) In the cases covered by articles 18 and 19 any action for damages, however founded, can only be brought subject to the conditions and limits set out in this convention.
>
> (2) In the cases covered by article 17 the provisions of the preceding paragraph shall also apply . . . .

See In re Air Disaster at Lockerbie, Scotland, 928 F.2d 1267 (2d Cir.) ("the Warsaw Convention preempts state law causes of action arising under it"), *cert. denied*, 502 U.S. 920, 112 S. Ct. 331 (1991).

Accordingly, Ms. Tseng's claims for personal injuries are dismissed.

B. BAGGAGE

The Convention also applies to plaintiff's claims for damages to her checked and carry-on luggage.

"With respect to checked baggage, Article 18 provides for the strict liability of carriers for loss or damage sustained while under the control of the carrier." *Republic National Bank of New York v. Eastern Airlines, Inc.*, 815 F.2d 232, 236 (2d Cir. 1987). Ms. Tseng's suitcase was under El Al's control when the items in her suitcase were lost and damaged, so El Al is liable for that damage and loss.

For claims of damage to carry-on baggage, the Convention imposes liability on the carrier if the damage is the result of an accident. *See Baker v. Lansdell Protective Agency, Inc.*, 590 F. Supp. 165, 167 (S.D.N.Y. 1984). The items in Ms. Tseng's carry-on baggage were lost and damaged as the result of the search, which was an accident, so El Al is liable for the damage to and loss of items in that carry-on baggage.

1. Notice

The parties dispute whether El Al escapes liability for the loss of and damage to items in plaintiff's baggage under the Convention's requirement that plaintiff give prompt notice to it of the loss.

Article 26 of the Convention provides, in pertinent part:

> (2) In case of damage, the person entitled to delivery must complain to the carrier forthwith after the discovery of the damage, and at the latest, within 3 days from the date of receipt in the case of baggage and 7 days from the date of receipt in the case of goods. . . .
>
> (3) Every complaint must be made in writing upon the document of transportation or by separate notice in writing dispatched within the times aforesaid.

Although Article 26 of the Convention on its face requires written notice to the carrier only when there is "damage" to

baggage, notice is also required when items in baggage are lost, because "delivery of a package or container with part of its contents missing is damage and requires notice." *Denby v. Seaboard World Airlines, Inc.*, 575 F. Supp. 1134, 1141 (E.D.N.Y. 1983), *rev'd on other grounds*, 737 F.2d 172 (2d Cir. 1984).

At the time of plaintiff's flight, El Al had extended the time for passengers to give written notice to the carrier from three days, as provided above in Article 26 of the Convention, to seven days, as provided by Rule 55(E)(1) of El Al's tariff, which provides in pertinent part:

> No action shall lie in the case of damage to baggage unless the person entitled to delivery complains to an office of carrier forthwith after the discovery of the damage, and at the latest, within seven (7) days from the date of receipt . . . .

That tariff was approved by the Civil Aeronautics Board, *see* International Passenger Rules and Fares Tariff, NTA (A) No. 324, ¶C.A.B. No. 530, Rule 55(E), and governs here. *See Tishman & Lipp, Inc. v. Delta Air Lines*, 413 F.2d 1401, 1403 (2d Cir. 1969) ("Tariffs filed with the Civil Aeronautics Board if valid, are conclusive and exclusive, and the rights and liabilities between airlines and their passengers are governed thereby").

Ms. Tseng submitted to El Al written notice of her damage in a letter dated July 1, 1993, which was 39 days after her flight to Tel Aviv. There is no evidence that she submitted written notice of the damage to El Al during the seven days after her flight.

Article 26(4) of the Convention provides

> Failing complaint within the times aforesaid, no action shall lie against the carrier, save in the case of fraud on his part.

Accordingly, Ms. Tseng's claims for damage to her baggage are barred by the notice requirement of Article 26, unless there is "fraud" on the part of El Al.

In *Denby v. Seaboard World Airlines, Inc.*, 737 F.2d 172 (2d Cir. 1984), the Second Circuit stated that the fraud exception " 'is not of a restrictive nature,' " but includes "any intentional acts by the carrier or its agents which significantly decrease the likelihood of the shipper's giving notice during the brief period allowed." 737 F.2d at 183 (quoting N. Matte, Treatise on Air-Aeronautical Law 425 (1981)).

Ms. Tseng, after discovering at her hotel that items in her baggage were damaged and missing, promptly made a telephone call to El Al. An agent of El Al told her that they could not do anything about it and that she should talk to them back in the United States. That statement by El Al "significantly decreased the likelihood" that she would give written notice of her damage to El Al during the brief period allowed. Accordingly, the fraud exception to the notice requirement applies in this case, and the notice requirement does not bar her claim for damage to her baggage.

2. Liability Limitations

Article 22(1) of the Convention limits the liability of a carrier for checked baggage "to a sum of 250 francs per kilogram", unless the passenger has made "a special declaration of value" of the baggage at the time it was delivered to the air carrier and "has paid a supplementary sum if the case so requires." By Order of the Civil Aeronautics Board this limit of liability has been converted to $20.00 per kilogram, or $9.07 per pound. *See* C.A.B. Order 74-1-16, 39 Fed. Reg. 1526 (1974).

There has been no evidence showing how much Ms. Tseng's suitcase weighed. Where the weight of a passenger's baggage is not noted on the baggage check, the weight may be based on the maximum allowable weight as set forth in the airline's tariff. *Republic National Bank v. Eastern Airlines*, 639

F. Supp. 1410, 1411 (S.D.N.Y. 1986), *aff'd*, 815 F.2d 232 (2d Cir. 1987).

At the time of Ms. Tseng's flight, Rule 115(Q) of El Al's tariff provided:

> (1) No article will be accepted for transportation if it exceeds the following maximum quantity/size/weight:
>
> (a) If the maximum outside linear dimensions exceed 80 inches or if the article weighs more than 70 pounds (32 kilograms).

That tariff was approved by the Civil Aeronautics Board. *See* International Passenger Rules and Fares Tariff, NTA (A) No. 324, ¶ C.A.B. No. 530, Rule 115(Q). Because the maximum weight of any article of baggage that Ms. Tseng could have checked with El Al is 70 pounds, El Al's liability for her checked suitcase is limited to $9.07 per pound times 70 pounds, which is $634.90.

The Convention, in Article 22(3), also limits El Al's liability for "objects of which the passenger takes charge himself"—that is, unchecked or carry-on luggage—to "a sum of 5,000 francs per passenger." Because the Civil Aeronautics Board has converted 250 francs to 20 dollars, *see* C.A.B. Order 74-1-16, 39 Fed. Reg. 1526 (1974), 5,000 francs is converted to 400 dollars.

Therefore, the Convention limits[2] El Al's liability for the damage sustained to the plaintiff's baggage to $634.90 for her checked baggage and $400.00 for her unchecked baggage. The evidence shows that the monetary value of the damage to and loss of items in her checked and unchecked baggage,

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[2] The evidence does not establish that the loss of and damage to the items in plaintiff's luggage constituted such willful misconduct as might take the case outside the Convention's limitations of liability under Article 25. *See Chukwuma v. Groupe Air France, Inc.*, 767 F. Supp. 43, 48 (S.D.N.Y. 1991) (to presume willful misconduct "solely on the basis of the fact that some of his luggage was lost or stolen" is "a presumption that would severely undercut Article 22's limitation of liability"), *aff'd*, 962 F.2d 2 (2d Cir. 1992).

respectively, exceeded those amounts. Accordingly, plaintiff is entitled to recover for the damage to her baggage in the amount of $1034.90.

CONCLUSION

Because the Warsaw Convention precludes recovery for emotional injury or for the physical manifestations of such injury, plaintiff's claims seeking such recovery are dismissed.

For her claims of damage to and loss of items in her baggage, plaintiff is entitled to damages in the amount of $1034.90, plus prejudgment interest according to law.

The Clerk is directed to enter judgment accordingly. So ordered.

Dated: New York, New York
March 13, 1996

LOUIS L. STANTON

LOUIS L. STANTON
U.S.D.J.

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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94 CIVIL 3385 (LLS)
Filed March 20, 1996

TSUI YUAN TSENG,

Plaintiff,

—against—

EL AL ISRAEL AIRLINES, LTD.,

Defendant.

JUDGMENT

A non-jury trial before the Honorable Louis L. Stanton, United States District Judge, having begun on March 7, 1996, and at the conclusion of the trial the Court having reserved its decision, and thereafter on March 13, 1996 the Court having rendered its Memorandum and Order finding in favor of the Plaintiff on her claims of damage to and loss of items in her baggage in the sum of $1,034.90, with pre-judgment interest, as against Defendant, and dismissing her claims for emotional injury or for the physical manifestations of such injury, it is,

ORDERED, ADJUGED AND DECREED: That the Plaintiff have judgment in the sum of $1,034.90 with pre-judgment interest from May 22, 1993 through March 20, 1996 at nine percent (9%) equaling $263.60; all totaling the judgment sum of $1,298.50 as against the Defendant.

Dated: New York, New York
March 20, 1996

JAMES M. PARKISON
Clerk of Court

By: JOHN S. HAGEN
Deputy Clerk

THIS DOCUMENT WAS ENTERED
ON THE DOCKET ON 3-20-96.

UNITED STATES COURT OF APPEALS

FOR THE SECOND CIRCUIT

Nos. 331, 857—August Term, 1996

(Argued November 20, 1996 Decided June 13, 1997)

Docket Nos. 96-7447, 96-7619

TSUI YUAN TSENG,

Plaintiff-Appellant-Cross-Appellee,

—v.—

EL AL ISRAEL AIRLINES, LTD.,

Defendant-Appellee-Cross-Appellant.

Before:

NEWMAN, *Chief Judge,*
CARDAMONE and ALTIMARI, *Circuit Judges.*

Appeal from a judgment entered in the United States District Court for the Southern District of New York (Stanton, J.), following a bench trial, finding in favor of plaintiff on her claim of property damage and awarding

her $1,034.90, but dismissing plaintiff's claims for personal injury for failure to establish an injury cognizable under Article 17 of the Warsaw Convention.

Affirmed in part, reversed in part, and remanded.

ROBERT H. SILK, New York, New York (Silk, Bunks, & Suckle, P.C., New York, New York, of counsel), *for Plaintiff-Appellant.*

DIANE WESTWOOD WILSON, New York, New York (Debra A. Shields, Condon & Forsyth, New York, New York, of counsel), *for Defendant-Appellee.*

CARDAMONE, *Circuit Judge*:

We have two issues to resolve on this appeal. One relates to the meaning of the term "accident" under Article 17 of the Warsaw Convention. The second, and by far more elusive, is whether a plaintiff denied a remedy for alleged injuries under the Convention because it does not apply may then pursue a claim for the same injuries in state court. The Supreme Court has not answered this question, and our search for the correct answer is somewhat reminiscent of Sir Galahad's search for the "Holy Grail." But unlike that Crusader who, pressing on, left the plain and climbed the height,[1] we must toil in the

[1] So pass I hostel, hall, and grange;
By bridge and ford, by park and pale,

valley, examining the Convention's language, its drafting history, decisional law and the thoughts of scholarly commentators.

Plaintiff Tsui Yuan Tseng (plaintiff or appellant) appeals from a judgment entered in the United States District Court for the Southern District of New York (Stanton, J.) that awarded her $1,034.90 for damages against defendant El Al Israel Airlines, Ltd. (El Al) for loss of her baggage, but dismissed her personal injury claim against the same defendant for failure to establish a cognizable injury.

Tseng alleged that El Al caused her to suffer personal injuries when it subjected her to a security search prior to her boarding an El Al flight from New York to Tel Aviv, Israel, and that the airline damaged and/or lost some of her personal belongings while searching her luggage. The district court ruled that the carrier's conduct constituted an "accident," giving rise to liability under Article 17 of the Warsaw Convention,[2] but that Tseng was barred from recovery because the only injuries she alleged were psychological and emotional, not physical.

BACKGROUND

Tseng, a New York resident employed by Beth Israel Medical Center, went on May 22, 1993 to John F.

All-arm'd I ride, whate'er betide,
Until I find the Holy Grail.

Alfred Lord Tennyson, *Sir Galahad*, *in* The Poetic and Dramatic Works of Alfred Lord Tennyson 101, 101 (W.J. Rolfe ed., Cambridge ed. Houghton, Mifflin & Co. 1898).

[2] Convention for Unification of Certain Rules Relating to International Transportation by Air, *concluded* Oct. 12, 1929, 49 Stat. 3000, T.S. No. 876 (1934), *reprinted in* 49 U.S.C. § 40105 note.

Kennedy International Airport in New York where she was scheduled to take El Al Flight LY-008 to Tel Aviv. Upon arrival, she proceeded to El Al's terminal, presented her ticket and U.S. passport to an El Al security guard, entered the terminal building and proceeded to a security area, where she was asked routine questions regarding her destination. Based upon her responses, which the security guard considered illogical—no explanation of why they were considered so is in the record—Tseng was classified as a "high risk" passenger.

Pursuant to the airline's security procedures, plaintiff was taken to a private room where she was subjected to a security search for explosives or detonating devices. The term "security search" refers to an intrusive search of a passenger's body initiated after a routine check by metal detector and questioning have led airline personnel to deem a passenger a security risk. Tseng was told to remove her shoes, jacket and sweater, and then instructed to lower her blue jeans to mid-hip level. A female security guard proceeded to search Tseng's entire body manually, including her breasts and groin area. The search, conducted outside Tseng's clothing, lasted 15 minutes. Security guards also searched Tseng's baggage. The security search of Tseng and her baggage conformed to El Al procedures, which had been adopted pursuant to Federal Aviation Administration regulations.

Following the search, El Al decided that Tseng did not present a security risk after all and she was permitted to board her flight. Plaintiff testified that, as a result of defendant's search, she "was really sick and very upset" during the course of the flight, and "emotionally traumatized and disturbed" throughout her month-long trip to Israel and thereafter. Subsequently, she underwent medical and psychiatric treatment; but, at no time did

Tseng claim she suffered any physical injury as a result of the bodily search.

During the flight plaintiff was unable to locate several personal items she had in her carry-on bag, and, upon arriving in Tel Aviv, she was missing, among other things, $1000 in cash and a diamond Rolex watch. Tseng did not inquire about the lost items during her flight or upon landing in Tel Aviv. However, while at the Tel Aviv airport she did inquire about her camera, which had been confiscated at JFK to be X-rayed. When plaintiff arrived at her hotel, she telephoned the airline's Tel Aviv office to inquire about the camera and the other missing items. She testified that an El Al representative informed her that she must take care of the matter in New York, and that the airline was "not interested in [her] missing items." On July 1, 1993, having returned from her trip, Tseng provided written notice to El Al's New York office that several items that accompanied her to the El Al Terminal for departure on her trip were either missing or damaged.

Since she did not obtain a satisfactory response, plaintiff initiated the action giving rise to this appeal by filing a complaint in May 1994 in the New York State Supreme Court for New York County. The complaint alleged a state law personal injury claim arising from the assault and false imprisonment; it also asserted a property claim relating to her lost and/or damaged property. El Al removed the case to federal court pursuant to 28 U.S.C. § 1441(d), because El Al is a "foreign state" within the meaning of 28 U.S.C. § 1603(a), which provides that "[a] 'foreign state' . . . includes a political subdivision of a foreign state or an agency or instrumentality of a foreign state."

In federal court, El Al argued that plaintiff's action was governed by the Warsaw Convention. The district court agreed, ruling it applicable because the airline's search of plaintiff constituted an "accident" within the meaning of Article 17. In applying the Convention, the trial court found the carrier liable under Article 18 for the loss and damage to Tseng's carry-on and checked baggage, and awarded her $1,034.90. The property loss award was calculated under Articles 22(2) and (3) of the Convention, which limit recovery for checked baggage to 250 francs per kilogram of baggage, and limit recovery for carry-on baggage to 5000 francs per person. These amounts have been converted to $20 per kilogram, or $9.07 per pound, for checked baggage and $400 per passenger for carry-on luggage. *See* 14 C.F.R. § 221.176(a); Warsaw Convention Liability Limitations, 39 Fed. Reg. 1526 (1974). Because the weight of Tseng's baggage could not be determined, the district court used the maximum weight allowed by El Al for checked baggage—70 pounds—to make its calculation. Tseng's personal injury claim was dismissed because she failed to show a physical injury as required by Article 17.

Plaintiff appeals the dismissal of her personal injury claim and El Al cross-appeals from the property damage award. We affirm, in part, and reverse, in part, and remand to the district court for further proceedings.

DISCUSSION

We are presented with two issues of considerable import. First, we must determine whether the security search of a passenger initially suspected of presenting a possible risk of terrorism but who is later determined not to present a danger constitutes an "accident" within the

meaning of Article 17 of the Warsaw Convention. Second, if the answer to the first question is "no," we must then determine whether the Convention provides the exclusive avenue for recovery of injuries sustained during international air travel even in cases where the terms of the Convention do not apply and it does not therefore subject the carrier to liability for damages.

Because there are a number of decisions setting forth the basic structure of the Convention—a comprehensive overview of it is set forth in *In re Air Disaster at Lockerbie, Scotland*, 928 F.2d 1267, 1270-71 (2d Cir. 1991) [*Lockerbie I*]—we discuss it only insofar as necessary to the resolution of the issues before us.

I Article 17

A. *Definition of "Accident"*

Tseng maintains it was error to dismiss her personal injury claims for want of a cognizable injury. The district court ruled that a security search of a passenger based upon suspicion of circumstances that turned out not to involve any danger constitutes an accident, subjecting the carrier to liability under Article 17. Carrier liability for personal injuries sustained by passengers engaged in international air travel is governed by Article 17 of the Convention, which states:

> The carrier shall be liable for damage sustained in the event of the death or wounding of a passenger or any other bodily injury suffered by a passenger, if the accident which caused the damage so sustained took place on board the aircraft or in the course of any of the operations of embarking or disembarking.

Article 17 applies where (1) an accident has occurred, in which (2) a passenger suffered death, wounding, or any other bodily injury, and (3) the accident occurred either on board the aircraft or in the course of embarking or disembarking from the plane. *See Eastern Airlines, Inc. v. Floyd*, 499 U.S. 530, 535-36 (1991). All three of these requirements must be met to invoke Article 17 liability. If a passenger satisfies the requirements for Article 17 liability, the amount of that liability was once limited to $75,000, *see In re Air Disaster at Lockerbie Scotland*, 37 F.3d 804, 812 (2d Cir. 1994), but 77 international carriers recently agreed to eliminate the $75,000 liability cap and impose strict liability up to 100,000 Special Drawing Rights (SDRs), roughly equivalent to $145,000, *see International Air Transport Association Intercarrier Agreement on Passenger Liability, approved by* D.O.T. Order 96-11-6, 1996 WL 656334 (D.O.T. Nov. 12, 1996). *See* DOT Approval Allows Liability Limits to be Abolished, Air Safety Wk., Nov. 18, 1996. However, a plaintiff may not recover for purely psychic injuries. *See Floyd*, 499 U.S. at 552.

Although the Convention does not define the term "accident," the Supreme Court describes it as "an unexpected or unusual event or happening that is external to the passenger." *Air France v. Saks*, 470 U.S. 392, 405 (1985). Yet "not every identifiable incident or occurrence during a flight is an accident within the meaning of Article 17 even if the incident or occurrence gives rise to an injury." *Quinn v. Canadian Airlines Int'l Ltd.*, No. 35558/91U, 1994 Ont. C. J. LEXIS 1695, at *10 (Ct. Just. May 30, 1994) (air turbulence not an accident); *see Pflug v. Egyptair Corp.*, 961 F.2d 26, 28-29 (2d Cir. 1992) (hijacking is an accident).

Thus, "accident" does not include those typical events that a passenger may be presumed to have accepted, that is to say, those injuries occurring in the normal operation of the aircraft or the airline are not injuries caused by "accidents" under Article 17. *See Saks*, 470 U.S. at 406; *Abramson v. Japan Airlines Co., Ltd.*, 739 F.2d 130, 133 (3d Cir. 1984); *Salerno v. Pan American World Airways, Inc.*, 606 F. Supp. 656, 657 (S.D.N.Y. 1985). Rather, it is only those unexpected "risks characteristic of air travel" that may occur during flight or in the course of embarking or disembarking and that are external to the passenger which may be called "accidents." *See Curley v. American Airlines, Inc.*, 846 F. Supp. 280, 283 (S.D.N.Y. 1994); *see also* Daniel Goedhuis, *National Airlegislations and the Warsaw Convention* 200-01 (1937). A "risk characteristic of air travel" is one that is to some extent unique to air travel, or to which carriage by air is peculiarly susceptible. *See Martinez Hernandez v. Air France*, 545 F.2d 279, 284 (1st Cir. 1976) ("[W]e think the risk of a random attack such as [a terrorist attack inside the baggage claim area] is not a risk characteristic of travel by aircraft, but rather is a risk of living in a world such as ours.").

At the time of the Convention's drafting, the delegates to the Warsaw conference understood "accident" to apply primarily to air disasters such as plane crashes. *See Day v. Trans World Airlines, Inc.*, 528 F.2d 31, 37-38 (2d Cir. 1975); *Second International Conference on Private Aeronautical Law: Minutes* 52 (Robert C. Horner & Didier Legrez trans., 1975) [hereinafter *Minutes*] ("[O]ne can classify aircraft accidents in three categories: those which arise out of errors of piloting; those which arise out of defect in the functioning of the aircraft[;] and those which are designated as being the

result of an Act of God, which is the majority of cases.").

"Since 1929, the risks of aviation have changed dramatically in ways unforeseeable by the Warsaw framers." *Day*, 528 F.2d at 37. As a result, courts regularly have viewed as "accidents" such events as terrorist attacks, *see, e.g., id.* at 37-38, hijacking, *see, e.g., Pflug*, 961 F.2d at 29; *Haddad v. La Compagnie Nationale Air France SA* [1981] E.C.C. 207 (CA Paris 1979), and bomb threats, *see, e.g., Margrave v. British Airways*, 643 F. Supp. 510, 512 (S.D.N.Y. 1986); *Salerno*, 606 F. Supp. at 657. On the other hand, the term has been held not to apply in instances such as death of a passenger by natural causes, *see, e.g., Walker v. Eastern Air Lines, Inc.*, 785 F. Supp. 1168, 1170 (S.D.N.Y. 1992), fights between passengers, *see, e.g., Price v. British Airways*, No. 91 Civ. 4947, 1992 WL 170679, at *3 (S.D.N.Y. July 7, 1992), routine repressurization of the aircraft, *see, e.g., Warshaw v. Trans World Airlines, Inc.*, 442 F. Supp. 400, 413 (E.D. Pa. 1977), or injuries resulting from intoxication, *see, e.g., Padilla v. Olympic Airways*, 765 F. Supp. 835, 838 (S.D.N.Y. 1991).

Given the near absolute liability now imposed by the Convention once an accident is found to have occurred, we invoke its provisions with some degree of care, reading its terms strictly and construing them narrowly. *See McCarthy v. Northwest Airlines, Inc.*, 56 F.3d 313, 316 (1st Cir. 1995) (Article 17 should be read parsimoniously because "there are sound policy reasons to confine . . . liability to the letter of the text, narrowly construed.").

B. *Security Search Not an "Accident"*

We turn now to consider whether the security search of Tseng was an accident under Article 17. Several reasons lead us to part from the district court, which thought it was. In the first place, being subjected to a personal search is a distasteful but common incident of international air travel. As such, it cannot be considered "unexpected" or "unusual," regardless of a passenger's subjective reaction to it. Or, as we just stated, not every incident occurring during a flight or in the process of embarking or disembarking is an "accident" within the meaning of Article 17. As one commentator explained:

> the passenger . . . is aware of the *typical events* related to an air carriage (turbulence, bad-weather, flashes of lightning onto the plane's hull, changes in cabin pressure, dry air in the cabin, so called 'air pockets', more or less 'hard' landings, etc.) and cannot realistically exclude the possibility of such occurrences happening on his flight, so he accepts them.

Elmar Giemulla et al., *Warsaw Convention* art. 17, para. 12 (Bernd Wickert-König trans., 1995).

Security clearance of one degree or another is part of every passenger's experience. And, a search of a passenger may not be said today to be an atypical event in international air travel. Each passenger must routinely submit to a metal detector and interrogation. Not infrequently, these initial procedures lead to additional measures, such as the use of a metal detecting wand or a security search. These events are an anticipated aspect of international travel. Whether appellant expected to be subjected to a security search is not a relevant consideration because she reasonably should have been aware that she might be.

A second reason that the subject search was not an "accident" is because it was part of the airline's normal procedure. Every air carrier is required by Federal Aviation Administration regulations to have in place security procedures to prevent terrorist attacks and to deny transport to anyone who does not consent to be searched upon request. *See* 14 C.F.R. § 129.25(b), (g)(1)-(2). As part of these security procedures, carriers are required to screen all passengers and baggage prior to boarding. *See* 49 U.S.C. § 44901(a) (requiring screening of passengers); 49 U.S.C. § 44906 (applying standards to foreign air carriers); 14 C.F.R. § 108.9(a). In accordance with these requirements, El Al conducts security searches of passengers daily. For example, in 1993 it conducted two to four security searches a day. Hence, as in *Saks*, this case appears simply to involve Tseng's personal reaction to the routine operating procedures of the defendant airline.

A further reason we cannot conclude that this incident was an "accident" within the terms of the Convention is because the Convention does not aim to derogate from the efforts of international air carriers to prevent violence and terrorism, efforts which are widely recognized and encouraged in the law. *See, e.g.*, 49 U.S.C. § 44901(a); 49 U.S.C. § 44906; *Day*, 528 F.2d at 34, 37 n.18 (recognizing the goal of accident prevention); 14 C.F.R. § 108.9(a) (screening utilized to "prevent or deter the carriage aboard airplanes of any explosive, incendiary, or a deadly or dangerous weapon").

Inherent in any effort to detect malefactors is the risk that innocent persons will be subjected to scrutiny and inconvenience. *Cf. Anderson v. Creighton*, 483 U.S. 635, 641 (1987) ("[I]t is inevitable that law enforcement officials will in some cases reasonably but mistakenly con-

clude that probable cause is present . . . ."). This is especially true in airports, where security personnel have only brief interaction with passengers, and must rely on such investigative tools as risk profiles, as was the case here, because there is insufficient time to conduct a more extensive investigation. The inconvenience and embarrassment to the individual passenger of being erroneously searched, therefore, is the price passengers pay for the degree of airline safety so far afforded them. To this end, courts have recognized that airport security officials are to some extent freed from the exacting requirements typically attached to governmental searches of individuals. *See, e.g., United States v. Bell*, 464 F.2d 667, 675 (2d Cir. 1972) (Friendly, C.J., concurring); *New York v. Waring*, 174 AD2d 16, 19 (App. Div. 2d Dep't), *appeal denied*, 79 NY2d 1009 (1992). To suppose the drafters of the Convention aimed to impose close to absolute liability on air carriers for searches that disclosed no danger seems to us highly unlikely.

Our final reason deals with appellant's misapprehension regarding two Articles of the Convention. Tseng appears to assert that El Al's conduct is "wilful misconduct" covered under Article 25 and therefore the carrier's actions cannot constitute an "accident" within the meaning of Article 17. Plaintiff's view is based upon a misunderstanding of the Convention. The two articles are not mutually exclusive; rather the finding of an "accident" under Article 17 is a prerequisite to the imposition of any liability for the personal injuries of a passenger. *See Saks*, 470 U.S. at 396; *MacDonald v. Air Canada*, 439 F.2d 1402, 1404 (1st Cir. 1971). Article 25 simply describes a subset of "accidents" that are more egregious and to which a greater degree of culpability attaches.

In sum, from the above authorities, we derive the following: a carrier is liable in damages for an accident on board the aircraft or in the course of embarking or disembarking that causes the death or wounding or any other bodily injury of a passenger. An "accident" is an unexpected or unusual event that is external to the passenger; but, "accident" does not include those typical occurrences that a passenger is presumed to accept as a characteristic risk of air travel. As a consequence, we hold that even though the event of which plaintiff complains occurred during the course of her embarkation on defendant's airplane, there was no accident and she suffered no bodily injury. Hence, under the terms of Article 17 of the Warsaw Convention, El Al may not be held liable in damages to her.

II The Exclusivity of the Convention

A. *State Cause of Action Lies When Convention Inapplicable*

Having ruled that the search of Tseng does not constitute an "accident," we now must determine whether the Convention provides the exclusive remedy for personal injuries sustained in the course of international air travel, such that Tseng is precluded from pursuing her state law claims for false imprisonment and battery. This is an issue the district court did not decide because it determined the Convention was applicable. The Supreme Court has twice declined to address the exclusivity of the Convention where its terms are *inapplicable*. *See Floyd*, 499 U.S. at 553; *Saks*, 470 U.S. at 408.

In *Lockerbie I* we stated in dictum that "a plaintiff plainly may institute" "a state cause of action when the claim does not arise under the Warsaw Convention." 928

F.2d at 1273. With the issue now squarely before us, we reaffirm that proposition and hold that state law claims are not precluded by the Warsaw Convention where the event or occurrence giving rise to the injury is found to be outside the Convention.

1. Convention's Text

Support for this view is found in the text of the treaty and in the context in which the words in it are used. *See Floyd*, 499 U.S. at 534 (noting that treaty interpretation should begin with the text), *Saks*, 470 U.S. at 396-97 (same); *see also* Vienna Convention on the Law of Treaties art. 31, *open for signature* May 23, 1969, U.N. Doc. A/CONF. 39/27 (1969), *reprinted in* 63 Am. J. Int'l L. 875, 885 (1969). The exclusivity provision of the Convention is found in Article 24, which provides:

> (1) In the cases covered by articles 18 and 19 any action for damages, however founded, can only be brought subject to the conditions and limits set out in this convention.
>
> (2) In the cases covered by article 17 the provisions of the preceding paragraph shall also apply, without prejudice to the questions as to who are the persons who have the right to bring suit and what are their respective rights.

The provision clearly states that resort to local law is precluded only where the incident is "covered" by Article 17, meaning where there has been an accident, either on the plane or in the course of embarking or disembarking, which led to death, wounding or other bodily injury, *see Floyd*, 499 U.S. at 535-36. To extend the scope of the Convention's exclusivity beyond that which it expressly provides would require rewriting Article 24

or Article 17, a task only the signatories to the Convention may undertake. *See Saks*, 470 U.S. at 406; *see also Brink's Ltd. v. South African Airways*, 93 F.3d 1022, 1027 (2d Cir. 1996) (the task of interpretation begins with the "literal language" of the treaty), *cert. denied*, 117 S. Ct. 959 (1997).

2. Drafting History

The plain meaning of Article 24 is also supported by reference to the drafting history, or *travaux preparatoires*, of the Convention. "[T]reaties are construed more liberally than private agreements, and to ascertain their meaning we may look beyond the written words to the history of the treaty, the negotiations, and the practical construction adopted by the parties." *Choctaw Nation of Indians v. United States*, 318 U.S. 423, 431-32 (1943); *see also* Vienna Convention, *supra*, art. 32, *reprinted in* 63 Am. J. Int'l L. at 885 (it is appropriate to use supplementary materials to "confirm the meaning resulting from" a contextual reading of the treaty's plain language).

The *travaux preparatoires* indicate that national law was intended to provide the passenger's remedy where the Convention did not expressly apply. During the conference, the Czechoslovakian delegation proposed an additional article that read: "In the absence of provisions in the present Convention, the provisions of laws and national rules relative to carriage in each State shall apply." *Minutes*, *supra*, at 176. The intent of the proposed article was set forth in its proviso: "Provided that the case which arises was not provided for in the Convention, it's the common law which is applicable." *Id.* However, the Czechoslovakian delegation was satisfied that its concern was addressed and withdrew its proposal

when the title of the Convention was amended to refer to the unification of "*certain rules*," thereby indicating "the special nature of the Convention." *Id.* (emphasis added); *see id.* at 188. Other delegates assumed it beyond question that the Convention was nonexclusive where it did not apply. For example, when asked what law would be applicable to cases excluded from the Convention under Article 34 (experimental trials exception), the French delegate exclaimed that "[n]aturally" the common law would apply. *Id.* at 85-86.

B. *Other Decisional Law and Scholarly Comment*

Moreover, a number of courts and commentators have concluded that the Convention provides the exclusive remedy only where its provisions expressly apply. *See, e.g., Schroeder v. Lufthansa German Airlines*, 875 F.2d 613, 618 (7th Cir. 1989) (court reached plaintiff's state law claims after determining that the Convention was not implicated); *Abramson*, 739 F.2d at 134 ("if [the Convention] does not apply, it leaves liability to be established according to traditional common law rules"); *Martinez Hernandez*, 545 F.2d at 284; *Tandon v. United Air Lines*, 926 F. Supp. 366, 370-71 (S.D.N.Y. 1996); *Beaudet v. British Airways, PLC*, 853 F. Supp. 1062, 1072 (N.D. Ill. 1994) (state law negligence claim not pre-empted where Convention is inapplicable); *Levy v. American Airlines*, No. 90 Civ. 7005, 1993 WL 205857, at *5 (S.D.N.Y. June 9, 1993), *aff'd*, 22 F.3d 1092 (2d Cir. 1994); *Walker*, 785 F. Supp. at 1173 (S.D.N.Y.); *Fischer v. Northwest Airlines, Inc.*, 623 F. Supp. 1064, 1066 (N.D. Ill. 1985) (denying motion to dismiss state law claims, but dismissing Convention claims); *Rolnick v. El Al Israel Airlines, Ltd.*, 551 F. Supp. 261, 264 (E.D.N.Y. 1982) (permitting pursuit of state law claim after finding

passenger's slip on escalator not to have been within the Convention); Giemulla et al., *supra*, *Warsaw Convention* art. 1, para. 35 ("Where the Convention is not applicable, national law will be applied."); Lawrence B. Goldhirsch, *The Warsaw Convention Annotated: A Legal Handbook* 62 (1988) ("Where there is no 'accident' the Warsaw Convention is probably inapplicable and the passenger may proceed to use local law to prove a claim."); René H. Mankiewicz, *The Liability Regime of the International Air Carrier: A Commentary on the Present Warsaw System* 2, 13 (1981); Luis F. Ras, *Warsaw's Wingspan Over State Laws: Towards a Streamlined System of Recovery*, 59 J. Air L. & Com. 587, 589 (1994). *But see Potter v. Delta Air Lines, Inc.*, 98 F.3d 881, 885 (5th Cir. 1996) ("The Convention's goals of uniformity and certainty would be frustrated were we to allow Mrs. Potter to assert her state law claims, even where the Convention does not provide her a remedy."); *Salazar v. Mexicana Airlines*, 20 Av. Cas. (CCH) ¶ 17,114, at ¶ 17,115 (W.D. Tex. 1986) (same); *Sidhu v. British Airways plc* [1997] 1 All E.R. 193, 207 (H.L. 1996) (U.K.) (same).

C. *Contrary Arguments Refuted*

Two arguments have been advanced in support of the proposition that the Convention is wholly exclusive. We reject both. The first is a structural argument advanced in Great Britain. *See Sidhu* [1997] 1 All E.R. at 205-07. In the view of the English courts, Article 17 is intended to provide exhaustively for the circumstances under which a carrier may be held liable. *See id.* at 207. According to the House of Lords, the purpose of Article 17 is "to prescribe the circumstances, that is to say the only circumstances, in which a carrier will be liable in damages to the passenger for claims arising out of his

international carriage by air." *Id.* Interpreted in this fashion, the English courts read Article 24's reference to "cases covered under article 17" to mean those cases within the Convention not covered by Articles 18 (baggage) and 19 (delay), rather than to distinguish between incidents of personal injury that are or are not within the provisions of the Convention. *See id.*

We recognize that a construction of the Convention by our sister signatories is "entitled to considerable weight," *Saks*, 470 U.S. at 404, but remain unpersuaded to follow the course laid out in *Sidhu*. For one thing, the Convention is not an exhaustive set of rules and guidelines dealing with international air travel, as is evident from its formal title. As one commentator explained, "the Convention was not intended to govern the entire relationship between air carriers and passengers . . . , and does not propose to unify all such rules." Ras, *Warsaw's Wingspan*, *supra*, at 589; *see* Mankiewicz, *The Liability Regime*, *supra*, at 13, 91.

For another, neither the text nor the *travaux preparatoires* reveal an aim to provide in an exhaustive way for the liability of the carrier for all personal injuries. It is widely accepted that one of the two primary purposes of the Convention was to shield carriers from financial catastrophe following in the wake of a major accident. *See MacDonald v. Air Canada*, 439 F.2d at 1405; Andreas F. Lowenfeld & Allan I. Mendelsohn, *The United States and the Warsaw Convention*, 80 Harv. L. Rev. 497, 499 (1967). To that end, the Convention limits airline liability for accidents. But the Convention does not purport to insulate carriers from the ordinary risks of doing business, such as keeping their facilities in good repair. An injury to a passenger caused, for example, by a failure of a carrier to keep its walkways in

a safe condition is hardly the type of catastrophic incident that would likely force even a fledgling airline out of business, and cannot be assumed to have been within the contemplation of the drafters of the Convention.

Given the self-described limitation of the Convention, it seems illogical to extend its scope beyond that for which it explicitly provides.[3] It is not tenable to believe the Convention meant to address the more ordinary type of personal injury without some express statement in the text to that effect. Such reading would lead to the absurd result of allowing carriers to escape liability for their negligence—or even their intentional torts—so long as the event giving rise to the injury was not an accident occurring on an airplane or in the course of embarking or disembarking as narrowly circumscribed by the definition of Article 17's meaning.

For example, it is generally accepted that a passenger injured while riding an escalator in the airline terminal does not have recourse under Article 17. *See, e.g., McCarthy*, 56 F.3d at 317 (passenger's slip on escalator not in the course of embarking or disembarking); *Abu Hamdeh v. American Airlines, Inc.*, 862 F. Supp. 243,

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[3] The intention of the drafters appears perfectly plain: gaps left in the regulation of international air carriage would be filled in by subsequent agreements. This point was made in a request by the French delegation to the conference:

> Considering that the Warsaw Convention provides only for certain difficulties relating to air carriage and that international air navigation raises many other questions that it would be desirable to provide for by international agreements,
>
> Expresses the wish:
>
> That, through the offices of the French Government, which has taken the initiative of the convening of these conferences, that there be convened subsequently, new conferences which will pursue the work of unification.

Minutes, *supra*, at 182.

247-48 (E.D. Mo. 1994) (same); *Rolnick*, 551 F. Supp. at 264 (same). Were we to read Article 17 to provide the exclusive remedy for personal injury, a carrier would not be liable for injuries caused by the malfunctioning of an escalator, notwithstanding the fact that it may have recklessly disregarded its duty to keep it in proper repair. Beyond the inequity of forcing the passenger to bear the cost of an airline's negligence, safeguarding an airline from this sort of liability removes the incentive for it to maintain its premises properly—an important goal of domestic tort law. *See* W. Page Keeton et al., *Prosser and Keeton on the Law of Torts* § 4, at 25 (5th ed. 1984) ("When the decisions of the courts become known, and defendants realize that they may be held liable, there is of course a strong incentive to prevent the occurrence of the harm."); *cf. Day*, 528 F.2d at 34 (airlines are in better position to assess risks and prevent accidents).

The second argument advanced in support of holding the Convention wholly exclusive is that permitting state law claims under any circumstances contravenes the Convention's goal of uniformity. *See Potter*, 98 F.3d at 885. This argument is flawed in two respects. First, while uniformity is certainly one of the two primary goals of the Convention, such a goal has not always been found feasible in all areas of international travel. Second, even where possible, uniformity cannot justify altering the operating structure of the Convention. *See Zicherman*, 116 S. Ct. at 636 (rejecting application of general maritime law to all Convention cases regardless of whether maritime law would naturally apply). We have read *Zicherman* to instruct specifically that the Convention expresses no compelling interest in uniformity that would warrant us in supplanting an otherwise applicable body of law, here state law. *See Pescatore v.*

Pan American World Airways, Inc., 97 F.3d 1, 11 (2d Cir. 1996). Even to accept the argument that uniformity should prevail where the Convention does not apply does not support the ultimate proposition that the Convention must therefore provide the exclusive remedy, because uniformity could be achieved equally as well by allowing recovery outside the Convention, under a uniform body of law. Of course, once the Convention is ruled inapplicable the carrier may, in a liability suit against it under domestic law, interpose all the defenses available to it under that law.

D. *Passengers' Interests*

Finally, excluding state law claims where the Convention does not apply is inconsistent with the Convention's goal of protecting passengers. Underlying the desire for uniformity and limited liability for the carrier was a desire to balance the interests of the passenger and the carrier. *See Lockerbie I*, 928 F.2d at 1271. In return for certainty and limited liability, the carriers accepted presumed fault when the Convention applied, so that passengers or their survivors could obtain recovery in situations where it might be difficult to prove a carrier's negligence. *See id.*

Over the past several decades, international air transportation has transformed from a fragile, fledgling industry into one that is well established and financially secure. In recognition of the increasing strength of the airline industry, the balance has properly shifted away from protecting the carrier and toward protecting the passenger, *see Day*, 528 F.2d at 37, evidenced by the recent intercarrier agreement abandoning the Convention's liability cap and imposing strict liability up to $145,000.

Reading the Convention to preclude recovery for injuries sustained outside the scope of the Convention would undermine the notion of balancing the interests of the carrier and the passenger. Under such a scheme, the carrier would be disproportionately favored by being absolved from liability for its tortious conduct, except under certain limited circumstances. The passenger would be forced to bear the cost of injury, despite the airline being in a better position to distribute the costs of such injuries and to prevent them from occurring. *See* Keeton, *Law of Torts*, *supra*, § 4, at 24 (Tort law tends to place the burden on the corporation, "who by means of rates, prices, taxes or insurance are best able to distribute" risks and losses.). It is highly doubtful that such a skewing of interests was in the contemplation of the original drafters of the Convention, and such an interpretation is clearly at odds with the current goals of the Convention. Consequently, we hold that where the Convention is inapplicable, a plaintiff may seek recourse under state law.

CONCLUSION

We have reviewed El Al's cross-appeal concerning the district court's findings and conclusions embodied in its judgment regarding Tseng's baggage claim and find it to be without merit. Accordingly, the judgment is reversed with respect to Tseng's personal injury claim and affirmed with respect to her baggage claim. Plaintiff's personal injury cause of action is remanded to the district court, which, should it determine it proper to exercise pendent jurisdiction, may then resolve Tseng's outstanding state law claims in accordance with this opinion.

UNITED STATES COURT OF APPEALS

FOR THE SECOND CIRCUIT

Docket Nos. 96-7447, 96-7619
Filed June 13, 1997

TSUI YUAN TSENG,

Plaintiff-Appellant-Cross-Appellee,

—against—

EL AL ISRAEL AIRLINES, LTD.,

Defendant-Appellee-Cross-Appellant.

At a Stated Term of the United States Court of Appeals for the Second Circuit, held at the United States Courthouse, Foley Square, in the City of New York, on the 13th day of June, one thousand nine hundred and ninety-seven.

Present:

HON. JON O. NEWMAN
Chief Judge
HON. RICHARD J. CARDAMONE
HON. FRANK X. ALTIMARI
Circuit Judges

MANDATE

Appeals from United States District Court for the Southern District of New York.

This cause came on to be heard on the transcript of record from the Southern District of New York and was argued by counsel.

ON CONSIDERATION WHEREOF, it is now hereby ORDERED, ADJUDGED, AND DECREED that the judgment of said district court be and it hereby is affirmed in part, reversed in part and remanded to the said district court for further proceedings in accordance with the opinion of this court.

For the Court
GEORGE LANGE III, Clerk
By:

BETH J. MEADOR
Beth J. Meador
Administrative Attorney

ISSUED AS MANDATE July 8, 1997